

delay, as the facts giving rise to these amendments were recently discovered. But even so, delay by itself is not a ground to deny leave to amend unless it results in specific prejudice such as the loss of critical evidence or the unavailability of a witness. Defendant has not made that showing.

There is no basis in the record for finding that delay has prejudiced an opposing party. There is no trial date, so defendants will have sufficient time to respond to the amended complaint and prepare for trial on the new allegations. The Court therefore exercises its discretion to permit the amendment.

Disposition

Plaintiff's motion is **granted**. Plaintiff shall prepare and submit the order, file and serve notice of entry of order, and file the FAC within 10 days of the hearing.

6. 9:00 AM CASE NUMBER: C24-01396
CASE NAME: JESUS TORRES VS. CHICAGOS PIZZA IP HOLD CO., LLC
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: KATHLEEN E. FINNERTY
FILED BY: CHICAGOS PIZZA IP HOLD CO., LLC
TENTATIVE RULING:

The unopposed motion of attorney **KATHELEEN E. FINNERTY** to be relieved as counsel for **CHICAGO'S PIZZA HOLD CO., LLC** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

CHICAGO'S PIZZA HOLD CO., LLC'S Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of

CHICAGO'S PIZZA HOLD CO., LLC'S counsel to be Relieved as Counsel of Record. This motion is **Granted**.

CHICAGO'S PIZZA HOLD CO., LLC MUST TAKE NOTICE THAT AN LLC CANNOT REPRESENT ITSELF IN COURT, AND MAY APPEAR ONLY THROUGH AN ATTORNEY.

The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) with the change that the next Court date is September 8, 2026 at 8:30 am for Case Management Conference. The withdrawal is effective upon **KATHELEEN E. FINNERTY** filing the proof of service of signed order on the client and all parties.

7. 9:00 AM CASE NUMBER: C24-02540
CASE NAME: MONICA JOHNSON-BLAIR VS. BENJAMIN GREER, MD
HEARING ON DEMURRER TO: RE 3RD AMENDED COMPLAINT
FILED BY: EQUITY HR, INC.
TENTATIVE RULING:

Defendant Equity HR's demurrer to the operative Third Amended Complaint filed January 22, 2026 is **overruled**. Defendant has ten days from the notice of entry of order to file their answer.

In the Third Amended Complaint filed January 22, 2026 (see notice of errata), Plaintiff is suing for (1) constructive tortious discharge in violation of public policy, (2) gender discrimination, (3) harassment based on gender, (4) failure to prevent discrimination and harassment, (5) violation of Labor Code section 1102.5, (6) violation of Labor Code section 6310-6311, (7) assault, (8) intentional infliction of emotional distress and (9) unfair business practices. Plaintiff alleged that her boss, Dr. Greer, engaged in unlawful harassment and discrimination. Plaintiff has sued Equity HR under a joint employer theory.

Defendant demurs to every cause of action based upon the failure to allege sufficient facts to state a cause of action, Code of Civil Procedure section 430.10(e).

Causes of Action 1 to 6 (Joint Employer Issue)